

Mr Richard McLean

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17 March 2025

Communication changes with the National Disability Insurance Agency (NDIA)

Dear Mr McLean,

I am writing to advise you that we need to make changes to the way you communicate with the National Disability Insurance Agency (NDIA).

The NDIA is committed to the values of taking care and valuing people, and this is important for all communication between Participants, staff, and representatives. Respectful relationships and interactions enable us to assist you.

On Tuesday, 1 October 2024, we sent you a letter to let you know NDIA staff will not have direct contact with you due to your continued inappropriate and unreasonable behaviours which have affected staff safety and wellbeing. We also advised that we would reassess these arrangements and determine whether the arrangements needed to be continued.

This 6-month period is due to finish on 1 April 2025, and we have now reassessed these arrangements.

On Wednesday, 11 December 2024, we sent you a letter to let you know face to face services would be withdrawn for a 6-month period due to contravening your restrictions to attend a NDIA office and continued display of unreasonable behaviour in your email correspondence including using explicit and intimidating language, made reference to sexual acts, and made threats of harm towards NDIA staff. We also advised that we would reassess these arrangements and determine whether the arrangements needed to be continued.

This 6-month period is due to finish on 11 June 2025, and we have now reassessed these arrangements.

Following consultation, we have determined that these restrictions will continue.

Why are these changes required?

Over the last 12 months, you have sent a high volume of correspondence to the NDIS that contains unreasonable behaviour, including using explicit and intimidating language, threats of physical violence, self-harm and reference to sexual acts including imagery. You have also contacted the National Call Centre and displayed unreasonable behaviour including using explicit and intimidating language.

On Thursday, 6 March 2025, you presented to the NDIA Tuggeranong ACT site. This attendance contravened with your restrictions to attend a NDIA office. During your attendance, you displayed unreasonable behaviour including verbal aggression.

Due to this behaviour, we are putting in place some restrictions regarding your contact with us as a precautionary measure to ensure the safety, security, and wellbeing of staff.

What this means for you:

Effective Monday, 17 March 2025, NDIA staff will not have direct contact with you due to your continued inappropriate and unreasonable behaviours which have affected staff safety and wellbeing.

If you contact the National Call Centre, you will be requested to contact your agency appointed Specialist Support Coordinator to discuss your enquiry.

The NDIA's first point of contact for response to emails or phone calls that relate to NDIS enquiries will be your agency appointed Specialist Support Coordinator or Public Guardian.

Effective from Monday, 17 March 2025, face to face services will continue to be withdrawn for a 12-month period. This means you are not permitted to attend or enter any NDIA office in Australia, including our Partners in the Community.

You must comply with the instructions contained within this letter. If you do not comply with these instructions, police will be contacted immediately, and you may be liable for prosecution in relation to:

- S20(1) Public Order (Protection of Persons and Property) Act 1971.

The NDIA remains committed to providing continued support and assistance to you and can confirm that whilst you are unable to attend or enter any NDIA office in Australia, including our Partners in the Community, you remain a Participant of the National Disability Insurance Scheme and are still able to use your NDIS funding.

For any scheduled or unscheduled plan reassessments, alternate communication arrangements can be made to ensure you are able to participate in discussions about your NDIS supports and funding, for example, email correspondence. Phone contact **may** be made to complete a scheduled plan reassessment if this falls within the restriction period. If unreasonable behaviour is displayed during phone contact, the NDIA will end the call with you immediately.

How long will this strategy remain in place?

These restrictions will remain in place for a **12-month period** from the date of this letter, with the expiry date of **17 March 2026**. At the end of this period, we will reassess these conditions and determine whether they need to be continued.

If you would like to provide input when we reassess this decision, you can do so by writing to us before the end of this restriction period via SRT.COMMUNICATIONS@ndis.gov.au.

Alternative Contact Arrangements:

For NDIS related enquiries, you may still contact your CSN Planner via email at CSN@ndis.gov.au, or by using the NDIA standard email communication channels. If you wish to do so, email enquiries@ndis.gov.au.

We kindly request that you treat our staff with courtesy and respect so that the NDIA can continue to provide you support. We will continue to monitor your emails, however, will not respond to emails containing any unreasonable behaviour.

If you have any questions about this letter, please contact us via SRT.COMMUNICATIONS@ndis.gov.au.

Yours sincerely



Michelle K
Branch Manager of Complex Support Needs
National Disability Insurance Agency